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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 2265/33 – 2022 පෙබරවාරි 02 වැනි බදාදා – 2022.02.02
2265/33 – WEDNESDAY, FEBRUARY 02, 2022

(Published by Authority)

PART I: SECTION (I) – GENERAL

Government Notifications

My No.: IR/COM/04/2018/29.

THE INDUSTRIAL DISPUTES ACT, CHAPTER 131

THE award dated 08.12.2020, transmitted to me by the Arbitrator to whom the Industrial Dispute which has arisen between Mr. P. D. Somasiri, No. 13, Paramaulla, Alawwa of the one part and Sri Lanka Transport Board, No. 200, Kirula Road, Colombo 05 of the other part was referred for settlement through arbitration by order dated 03.05.2019 made under Section 4(1) of the Industrial Dispute Act, Chapter 131 (as amended) and published in the *Gazette Extraordinary* No. 2122/39 dated 09.05.2019 of the Democratic Socialist Republic of Sri Lanka, is hereby published in terms of section 18(1) of the said Act.

B. K. PRABATH CHANDRAKEERTHI,
Commissioner General of Labour.

Department of Labour,
Colombo 05.
20th January, 2022.



In the matter of an Industrial Dispute

Between,

Mr. P. D. Somasiri,
No. 13, Paramaulla,
Alawwa.

Of the One Part

Case No. A/48/2019

And

Sri Lanka Transport Board,
No. 200,
Kirula Road,
Colombo 05.

Of the Other Part

THE AWARD

1. The Honourable Minister of Labour and Trade Union Relations by virtue of the power vested in him by Section 4(1) of the Industrial Disputes Act, Chapter 131 of the Legislative Enactments of Ceylon (1956 Revised Edition), as amended by Acts, Nos. 14 of 1957, 62 of 1957, 4 of 1962 and 39 of 1968 read with Industrial Disputes (Special Provisions) Act, No. 37 of 1968 appointed me by his order dated 03rd May, 2019 and referred the dispute between the aforesaid parties to me for settlement by Arbitration.
2. The matter in dispute between the aforesaid parties is:-
“Whether Mr. P. D. Somasiri who was working at the Wennappuwa Depot of the Sri Lanka Transport Board had been caused injustice by being retired without the salaries at the age of 55 with effect from 19.10.2014 and if so, to what reliefs he is entitled.”
3. Mr. A. A. Sahabandu, Attorney-at-Law appeared for the applicant and State Attorney, Miss Malmi Abeysundara, assisted by Mrs. Dilrukshi Liyanage, Legal Officer, appeared on behalf of the respondent organization.
4. Parties were summoned for learning of the case on 26th Nov. 2019, 17 Dec. 2019, 11th February, 2020, 30th June, 2020 and 14th July 2020. The applicant was present only on 06th Nov. 2019 and failed to appear, or inform the courts in advance, explaining his absence on the 4 days fixed thereafter.
5. Since the applicant takes no interest, I dismiss his application and award no relief. This is just and equitable order.

P. NAVARATNE,
Arbitrator.

08th December, 2020.

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